

EXHIBIT A-1 through A-7 (consolidated bench volume)

Case: CGC-25-631802

Lodged: Plaintiff’s April 27, 2026 coordinated filing. This single PDF consolidates the material that was **formerly** lodged as **seven** separate one-page PDFs, **Exhibits A-1 through A-7**. The **section headers** below use *Former Exhibit A-1* through *Former Exhibit A-7* labels for cross-references in other papers.

Section A-1 (JKC3H8 bench card (Former Exhibit A-1))

Case: CGC-25-631802 **Hearing:** April 30, 2026, Dept. 302 (verify on register of actions)

Block 0: Thirty-second sequencing statement

Plaintiff **accepts** the anti-subversion rule (*Simmons*; *Colton*; *Ellis*; *Contreras*). Plaintiff is **not** asking to amend *around* anti-SLAPP. The narrow ask is **noticed** leave under **CCP §§ 473(a)(1) and 576** to **perfect** the pleading **after** the merits showing, with defendants’ **CCP § 425.16(f)** renewed-motion remedy **expressly preserved**. Headline authority: *JKC3H8 v. Colton* (2013) 221 Cal.App.4th **471–472, 477–478** (leave-to-amend / § 425.16 intersection; anti-subversion limit). *See also* *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th **871–873** (supporting lane on limited discretion after a merits showing).

Block 1: Three *JKC3H8* propositions (pin cites)

- (a) Published authority refuting an absolute “no such authority exists” framing on noticed leave in the § 425.16 posture (*JKC3H8*, 221 Cal.App.4th at 471–472).
 - (b) *JKC3H8*’s express limit: a plaintiff may not amend **in response to the motion** to **subvert or avoid** a ruling on an anti-SLAPP motion (*id.* at 477–478).
 - (c) **CCP § 425.16(f)** is the Legislature’s **sequencing** tool (renewed motion) alongside **§§ 473(a)(1) / 576** liberality.
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Block 2: Perfect versus add-new

Perfect: same operative facts, same primary right, same instrumentality; CCP 473(a)(1), 576; *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 471–472, 477–478 (**no categorical freeze** in the posture the Opposition misstates). *See also* *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871–873 (**supporting** discretion lane after a merits showing).

Not allowed: replacing the obligation with a wholly distinct legal obligation (*Klopstock v. Superior Court* (1941) 17 Cal.2d 13, 19-20).

Block 3: Not cited in Opposition’s TOA (disclose at hearing)

Authority	Not cited in Opp. TOA
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<i>Simmons v. Allstate Ins. Co.</i> (2001) 92 Cal.App.4th 1068	Yes
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<i>City of Colton v. Singletary</i> (2012) 206 Cal.App.4th 751	Yes
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Authority	Not cited in Opp. TOA
<i>Law Offices of Andrew L. Ellis v. Yang</i> (2009) 178 Cal.App.4th 869	Yes
<i>Contreras v. Dowling</i> (2016) 5 Cal.App.5th 394	Yes
<i>Nguyen-Lam v. Cao</i> (2009) 171 Cal.App.4th 858	Yes
<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468	Yes
<i>Klopstock v. Superior Court</i> (1941) 17 Cal.2d 13	Yes
<i>Trafton v. Youngblood</i> (1968) 69 Cal.2d 17	Yes
<i>Mesler v. Bragg Management Co.</i> (1985) 39 Cal.3d 290	Yes
<i>Foreman & Clark Corp. v. Fallon</i> (1971) 3 Cal.3d 875	Yes
<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311	Yes

Block 4: Legislative purpose (anchored on *JKC3H8*'s holding)

Anti-SLAPP targets **meritless** misuse of protected activity. *JKC3H8* addresses whether amendment that **removes** protected-activity allegations can **moot** an anti-SLAPP motion tied to the **prior** pleading - and draws an express **anti-subversion** limit on amendments filed **in response to the motion** (*JKC3H8*, 221 Cal.App.4th at 471–472, 477–478). Plaintiff cites that line **narrowly** and preserves defendants' **§ 425.16(f)** remedy.

Section A-2 (Four-allegation evidentiary audit (Former Exhibit A-2))

Lodged with: Plaintiff's Request for Judicial Notice (RJN Item 7)

Allegation 1

- **Allegation (verbatim):** “procedurally defective and legally unsupportable motion practice is undeniably designed to evade Defendants’ Anti-SLAPP” (Opp. p.2)
- **Stated evidence:** O’Connell Decl. ¶¶ 3, 4, 14; footnote-2 day count; string-cite
- **Admissibility:** INADMISSIBLE (Evid. Code §§ 702, 800)
- **§ 128.7(b)(3):** NO; no admissible evidence of intent to evade
- **Controlling authority:** *JKC3H8*, 221 Cal.App.4th 471-472, 477-478; CCP § 425.16(f); *Park*; *Baral*; *Kimmel*; *see also Nguyen-Lam*, 171 Cal.App.4th 871-873
- **Opp. TOA:** N

Allegation 2

- **Allegation (verbatim):** “defective service, gamesmanship . . . substantially prejudices Defendants” (Opp. § II.B)
- **Stated evidence:** Decl. ¶ 7 + Ex. C; ¶ 12; fn. 2
- **Admissibility:** ¶ 12 = legal conclusion (§ 702)
- **§ 128.7(b)(3):** NO concrete prejudice; arithmetic refuted
- **Controlling authority:** *Atkinson*; *Kolani*; *Kyle*; *Carlton*; *Britts*; CCP §§ 1005(b), 1010.6
- **Opp. TOA:** N

Allegation 3

- **Allegation (verbatim):** burden/expense of Anti-SLAPP; “costs of additional motion practice” (Opp. § II.B)
- **Stated evidence:** May 12 SLAPP pendency; no quantum
- **Admissibility:** No billing/records; argumentative
- **§ 128.7(b)(3):** NO “wasted” cost (§ 425.16(f))
- **Controlling authority:** CCP § 425.16(f); *Foreman & Clark*; *Mesler*; *Atkinson*
- **Opp. TOA:** N

Allegation 4

- **Allegation (verbatim):** “no such authority exists” (Opp. Intro.)
- **Stated evidence:** none
- **Admissibility:** n/a (legal)
- **§ 128.7(b)(3):** N/A; § 128.7(b)(2) on authorities
- **Controlling authority:** CCP §§ 473(a)(1), 576, 425.16(f); *JKC3H8*; *Klopstock*; *Blank*; *Trafton*; *Mesler*; *Foreman & Clark*; *Baral*; *Park*; *Kimmel*; *see also Nguyen-Lam*
- **Opp. TOA:** N

Section A-3 (Anti-SLAPP threshold defect matrix (Former Exhibit A-3))

Lodged with: Plaintiff's April 27, 2026 coordinated packet (Request for Judicial Notice, Exhibit A-3).

801/802 (shared) - act-by-act gravamen / *Park*

- **Case line:** 801/802 (shared)
- **Defense assertion (summary):** Treated the FAC as if liability rests on generic “litigation conduct” without act-by-act gravamen.
- **Omitted required showing:** *Park* gravamen: identify the injury-producing act, not the surrounding case posture.
- **Controlling authority:** *Park v. Board of Trustees* (2017) 2 Cal.5th 1057
- **Why fatal:** Step one never isolates the protected act that actually supplies liability; burden does not shift.
- **Procedural effect:** A facially deficient step-one special motion, coupled with **opposition to a conforming SAC**, can create the **appearance of using** an anti-SLAPP filing as a **procedural stop sign** rather than an **early merits screen**, with **delay** in pleading alignment.
- **Requested ruling:** **Deny** the special motion (or **decline** to treat it as carrying step one) **before** step two.

801/802 (shared) - Civil Code § 47(b) as § 425.16 step one

- **Case line:** 801/802 (shared)
- **Defense assertion (summary):** Relied on Civil Code § 47(b) as if it were Code of Civil Procedure § 425.16 step one.
- **Omitted required showing:** “Arising from” protected **activity** under § 425.16; *Park / Wilson* gravamen.
- **Controlling authority:** § 425.16; *Wilson v. CNN* (2019) 7 Cal.5th 871
- **Why fatal:** **Privilege** reasoning does not replace the **arising from** and **gravamen** showings.
- **Procedural effect:** The sequence **relabels** claim handling as “petitioning” without a **valid** act-by-act predicate.
- **Requested ruling:** Same.

801/802 (shared) - pre-litigation omissions / investigatory conduct

- **Case line:** 801/802 (shared)
- **Defense assertion (summary):** Rolled pre-litigation **omissions** and investigatory conduct into a petitioning label.
- **Omitted required showing:** Separation of **noncommunicative / pre-filing** conduct from post-filing court advocacy.
- **Controlling authority:** *Park; Action Apartment Assn. v. City of Santa Monica* (2007) 41 Cal.4th 1232
- **Why fatal:** Omissions and investigatory failings are not **shown** to be protected **petitioning** at step one.
- **Procedural effect:** The motion **masks** the allegations about **denial** and **records** in a way that **blocks** transparent amendment framing.
- **Requested ruling:** Same.

801/802 (shared) - “grants the motion” proposed order

- **Case line:** 801/802 (shared)
- **Defense assertion (summary):** Proposed order “**grants the motion as follows**” with no claim-by-claim or allegation-level findings.
- **Omitted required showing:** Mixed-claim and strike relief precision.
- **Controlling authority:** *Baral v. Schnitt* (2016) 1 Cal.5th 376
- **Why fatal:** **Facial** order defect: cannot know **what** is stricken.
- **Procedural effect:** A **void** order template **replicates** uncertainty in the same posture as the **leave** motion.
- **Requested ruling:** **Deny** the motion or **refuse to enter** facially void proposed language.

801/802 (shared) - step-two rhetoric / *Baral* sequence

- **Case line:** 801/802 (shared)
- **Defense assertion (summary):** “Cannot prevail” / “unsupportable” / step-two **rhetoric** in briefing.
- **Omitted required showing:** *Baral* **minimal** merit; step two only **after** step one.
- **Controlling authority:** *Baral*
- **Why fatal:** Sequence error: burden not shifted.
- **Procedural effect:** Rhetoric **increases friction and expense** in the MFL-SAC and anti-SLAPP **stack** without a **valid** first-step **predicate**.
- **Requested ruling:** Enforce **step-one** discipline.

802 - pre-litigation denial letter (Feb. 25, 2021)

- **Case line:** 802
- **Defense assertion (summary):** Anchored the motion on a **pre-litigation denial letter** (February 25, 2021) and claim **handling**
- **Omitted required showing:** **Serious, good-faith** post-dispute litigation **contemplated** when the letter was sent, if the letter is to be “petitioning.”
- **Controlling authority:** *Wilson*; *Park*; line on **imminent** litigation in serious consideration (see defense theory)
- **Why fatal:** The motion does **not** show the **letter** was a petitioning act in the **requisite** sense; core gravamen is **insurer** communication and **mishandling**.
- **Procedural effect:** The filing sequence **recharacterizes** pre-litigation **insurer** writing as “petitioning” in order to **resist** SAC **perfection** - the **practical effect** is **amendment-blocking** posture without a **valid** first-step **showing**.
- **Requested ruling:** **Deny** at step one.

802 - “concluded our investigation” as coverage opinion

- **Case line:** 802
- **Defense assertion (summary):** Treated “we have **concluded** our **investigation**” as a mere **coverage opinion**
- **Omitted required showing:** Distinguish **factual** representation of investigation **completion** from opinion about liability or coverage.
- **Controlling authority:** Fraud/INS bad-faith pleading line; *Park* gravamen
- **Why fatal:** If the gravamen is a **verifiable** misrepresentation, the motion has not carried **protected-activity** step one for that **core** allegation.
- **Procedural effect:** The motion **diverts** attention from the **denial** letter to generalized **litigation** context; that **increases delay** on what the case is **actually** about.
- **Requested ruling:** **Deny**; leave **UCL** and **fraud** channels disaggregated.

802 - UCL and fraud channels elided

- **Case line:** 802
- **Defense assertion (summary):** **UCL** and **Fraud** channels **elided**; single “petitioning” label
- **Omitted required showing:** **Separate** minimal-merit and protected-activity analysis where remedies differ
- **Controlling authority:** *Baral*; *Crowley v. Kattelman* (1994) 8 Cal.4th 666; UCL as business practice
- **Why fatal:** Mixed relief cannot be **collapsed** in one **protected label** without **Baral**-compliant order thinking.
- **Procedural effect:** Blended rhetoric **inflates** opposition to amendment **across** theories not severally justified at step one.
- **Requested ruling:** **Sever** theories and **deny** step one as to the **true gravamen** channel.

802 - 911 / BWC / CAD; basic records (non-communicative)

- **Case line: 802**
- **Defense assertion (summary): 911 / BWC / CAD** and failure to **obtain basic** records (non-communicative)
- **Omitted required showing:** Omissions, investigatory and **records-handling** conduct, not “speech”
- **Controlling authority:** *Park; Wilson*
- **Why fatal:** **Noncommunicative** conduct is not **shown** as **petitioning** at step one.
- **Procedural effect:** A motion that does **not parse** these allegations **inflates delay** in pleading the **factual** core.
- **Requested ruling:** **Deny**; require **segregation** in any **renewal** under **CCP § 425.16(f)**.

Suggested bench sentence (procedural effect, 802). The Court need not make a finding of **subjective** bad faith. The **practical effect** is that a **facially deficient** first-step **showing** is used **while defendants oppose** a **conforming SAC**; that sequence creates the **appearance of procedural burden** and **delay** without a **valid** *Park* showing. The **neutral** remedy is **step-one** discipline, with **any renewal** under **CCP § 425.16(f)** if leave is granted.

Section A-4 (Causation matrix (Former Exhibit A-4))

Lodged with: April 27, 2026 packet (RJN, Ex. A-4). **Apex:** Feb. 28, 2025 pp. 291:26–292:7.

Ruling	Date / pin	False predicate (pin)	Feb.–28 291:26–292:7 (apex)	Record refutation	<i>Sanders / Modnick</i>
Transct. 1/27 ex- cluded	39:18–24	New-paper moots	Ties to reliance limit	IV.G-1	<i>Sanders; Modnick</i>
Supp.~outRT7	156:24–28	Advocacy bar	What FF can see	IV.G / D.0	<i>Modnick</i> POA
Burden/my/28	293:1–3	De minimis	Drives order	Alters channel	<i>Sanders</i>
MSJ/UM23–25 fraud		<i>Moradi</i> bad faith	Not duplicate lane	TAC direct actor	<i>Park; A-7</i>
SLAPP/MB4		Speech gravamen	Record basis	I.5; IV	<i>Sanders; Park</i>
§436 strike		Speech only	Procedural	TAC	<i>Modnick</i>
“Leak” cure	473/ct.	Day-7/8 fix	Adjudication frame	A-5 five	<i>Modnick</i>

Footer. 2025 Phase-Two (*Dolan* line) adds **retroactive** proof the 2021 file was not honestly closed; *Sanders* still governs the **7-row** map above.

Section A-5 (Leak-through defeat map (Former Exhibit A-5))

Lodged with: Plaintiff's April 27, 2026 coordinated packet (Request for Judicial Notice, Exhibit A-5).

1. (i) **Non-cured deprivation (record pin): Transcript category** excluded in perpetuity (Jan. 27, p. 39:18–24). **Why a later “Day-7/8” paper does not cure (under *Modnick* point of adjudication):** Prejudice is the **categorical** exclusion of the class of evidence, not a single line-item. **Distinct from *Cassim* harmless error:** Structural bar; not a “different emphasis” on same record.
2. (ii) **Non-cured deprivation (record pin): Supplemental report** line excluded (RT 7, p. 156:24–28). **Why a later “Day-7/8” paper does not cure (under *Modnick* point of adjudication):** Affects which facts are **before** the fact-finder at the MSJ/adjudication posture. **Distinct from *Cassim* harmless error:** Not cured by re-briefing labels after the order.
3. (iii) **Non-cured deprivation (record pin): Burden shift / “moot” colloquy** (Feb. 28, p. 293:1–3). **Why a later “Day-7/8” paper does not cure (under *Modnick* point of adjudication):** Alters the decision rule **at the ruling**; not a scrivener's error. **Distinct from *Cassim* harmless error:** *Modnick* measures at **point of adjudication**.
4. (iv) **Non-cured deprivation (record pin): Sequencing** destruction + **RT 10** closing-argument record. **Why a later “Day-7/8” paper does not cure (under *Modnick* point of adjudication):** Affects how proof is received and how the record is closed for appeal. **Distinct from *Cassim* harmless error:** “Leak-through” mischaracterizes **closed** record channels.
5. (v) **Non-cured deprivation (record pin): Closed continuance / CCP § 473** windows; forfeiture of hearing channels. **Why a later “Day-7/8” paper does not cure (under *Modnick* point of adjudication):** Jurisdictional and timing effects are not reversed by ex post filings. **Distinct from *Cassim* harmless error:** *Westphal* / *Kulchar* lines: timing and closure are not mere “narrative” harm.

Footer (measurement of prejudice). *Modnick*'s “point of adjudication” standard governs. The **Day-7/8** “cure” narrative is inconsistent with *Sanders*' “effectively prevented” test when five **structural** deprivations remain on the **certified** record pins above.

Section A-6 (Doctors' Company prong map (Former Exhibit A-6))

Lodged with: Plaintiff's April 27, 2026 coordinated packet (Request for Judicial Notice, Exhibit A-6). **Note:** 802 is **not** a duplicate of the 801 "insurer as principal" theory, but the **Doctors' Company** prong map remains **lodged** for **cross-reference** to shared institutional file facts (denial letter; panel substitution; four-hearing silence) that also **support ratification and enterprise** if the Court construes overlapping Scierter. **Primary development** of the map is in **CGC-25-631801 / Ex. A-6**.

Prong 1 - Normal "insurer" v. directed institutional conduct

- **Record evidence on file (shared pins):** **Feb. 25, 2021** Sarah Rash denial letter; **May 4, 2023** panel substitution, Transaction ID **#69953800**; four-hearing **silence** (TAC **IV.G-1** chain)
- **SJ discovery (if Court reaches):** Same claim-file / panel-guidance / billing and reserve targets as 801 (avoid divergent RFP)

Prong 2 - Enterprise / ratification hook (non-primary here)

- **Record evidence on file (shared pins):** Cross-walk: 801 Ex. A-6 full column; CSAA as cross-defendant in coordinated actions
- **SJ discovery (if Court reaches):** As needed for **narrow** ratification channel (see Ex. A-7 direct-addressee / 21-day lane)

Prong 3 - § 3294 managing-agent (if punitives posture later)

- **Record evidence on file (shared pins):** On-file management identity threads in **IV.K**
- **SJ discovery (if Court reaches):** **Managing-agent** discovery aligned with 801 (single coordinated set)

802 footer. 802's **core** instrument for **Moradi-Shalal* carve-out*** is Ex. A-7** (fraud; direct addressee; 21-day intent). This **A-6** is lodged so the Court is **not** asked to re-open two different packets with inconsistent institutional maps.

Section A-7 (Moradi-Shalal carve-out (Former Exhibit A-7))

Lodged with: Plaintiff's April 27, 2026 coordinated packet (Request for Judicial Notice, Exhibit A-7).

(i) 21-day timeline

- **Content (compact):** Feb. 4, 2021 collision / intake → Feb. 25, 2021 Sarah Rash **denial** (foundational records all within 21 days)
- **Authority / pleading pin:** TAC para. 25; IV.D.0; *G.D. Searle* (1975) 49 Cal.App.3d 22, 29 (intent at pleading stage)

(ii) Four foundational records within 21 days

- **Content (compact):** Police / intake; VIN / UM election; first-party claim path; **Sarah Rash** denial communication
- **Authority / pleading pin:** TAC para. 25; exhibit appendix cross-walk

(iii) Direct-addressee fraud (not a duplicate of *Moradi-Shalal* bad-faith)

- **Content (compact):** *Moradi-Shalal* **preserved** common-law fraud in direct communications at p. 305; *Zhang; State Farm* (1996) 45 Cal.App.4th 1093, 1103–04
- **Authority / pleading pin:** TAC I.5 (paras. 5–6); *Moradi-Shalal* (1988) 46 Cal.3d 287

(iv) Pleading-stage intent (not a full *Moradi* tolling contest here)

- **Content (compact):** Shortest *G.D. Searle* lane on facts alleged; 21-day answer on its face
- **Authority / pleading pin:** *G.D. Searle*; TAC para. 25A block

UCL “unlawful” predicate (one line). Para. 65 + para. 47A map common-law **fraud** to UCL; *State Farm* supports **fraud** as predicate (§ 790.03(h) (5) alternative channel noted in TAC as parallel).

Lazar particularity (footer). *Lazar* (1996) 12 Cal.4th 631 (who/what/when/where/how/by what means): the **Sarah Rash**-channel denial, the **21-day** closure, the **CSAA** institutional actors, and the **Phase-Two 2025** admissions, together satisfy the **fraud** particularity screen without collapsing into a generic *Moradi* “bad faith” relabel. **801 ratification cross-ref:** **CGC-25-631801 SAC IV.K** and coordinated ratification where CSAA is liable as **non-signing** principal - not a different fraud, a **concurrent** scienter.